



THE EU SUSTAINABLE COCOA PROGRAMME

In Côte d'Ivoire

Unpacking the EU Deforestation Regulation for the cocoa sector

90% of global deforestation is driven by the expansion of agricultural land, contributing to climate change, biodiversity loss, soil erosion and desertification, and hindering sustainable development



Cocoa is one of the **main drivers of forest loss in Côte d'Ivoire**. The European Union (EU) is a major consumer of cocoa.



Côte d'Ivoire

Côte d'Ivoire exports 59% of the cocoa it produces to the EU



The EU is taking action to **minimise the risk that products associated with deforestation enter the EU market** and to increase the demand for deforestation-free products



The **EU Deforestation Regulation (EUDR)** requires companies to ensure that the products they place on the EU market or export from it are not associated with deforestation



The EUDR is expected to enter into application at the end of 2024

Chocolate
Powder
Paste
Butter, fat, oil
Beans
Shells

The EUDR does not create a country or product ban

It is non-discriminatory and will apply to selected products, either imported or produced in imported into the EU

CATTLE

COCOA

COFFEE

PALM OIL

RUBBER

SOYA

WOOD

Derived products



The **EUDR** is in line with **Côte d'Ivoire's National Sustainable Cocoa Strategy**. It will accelerate progress towards cocoa traceability and sustainability

To enter the EU, cocoa must be:



Companies placing relevant products on the EU market must collect information showing:

The cocoa's origin (GPS information on plot*), suppliers and buyers

*GPS polygons for plots > 4 ha

That cocoa does not come from land deforested after **31 December 2020**

Deforestation = conversion of forests into agricultural land, including cocoa-agroforestry systems

Compliance with relevant Ivorian laws, including on land, environment, human rights, labour, trade & customs

To be submitted in a Due Diligence Statement

What's a forest?
The regulation uses an internationally-agreed definition from the FAO



Due diligence for companies consists of **3 steps**:

1	Collect evidence that the product is traceable, deforestation-free and legal	☒
2	Assess risks of non-compliance	☒
3	If risks have been identified, take action to mitigate them	☒

! If companies buy cocoa from a **low-risk area**, they only need to carry out the **first step**

A **benchmarking system** will categorise countries or regions according to **deforestation risk**. The frequency of EU Member States' **checks will vary consequently**:

Products from:	Obligations:	Frequency of checks:
LOW risk areas	simplified due diligence	1%
STANDARD risk areas	full 3-step due diligence process	3%
HIGH risk areas	full 3-step due diligence process	9%



1. Map GPS locations of deforestation-free cocoa plots



2. Deforestation-free cocoa delivered to cooperatives, where it is kept segregated



3. Possible processing of deforestation-free cocoa into derived products



4. Deforestation-free cocoa or derived products segregated during export



EU

5. Importer or manufacturer in the EU processes or packages deforestation-free cocoa or cocoa products



6. EU retailer sells deforestation-free chocolate to consumers



Disclaimer. This factsheet has been produced by the European Forest Institute with the financial assistance of the European Union. The contents of this factsheet are the sole responsibility of the author and can under no circumstances be regarded as reflecting the position of funding organisations. The information presented in this factsheet comes from the EUDR as adopted by the EU Council on 16 May 2023.

See **references**.

In support of the EU Sustainable Cocoa Initiative



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Funded by the European Union